TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 22, 2017
MINUTES

Present: Mason Smith, Chair, Barry Wolff, Glyn Cowden, Joseph Belton, Stephen Duke, Stephen Wood.
Absent: Bobby Carrier.
Staff: Michael Robertson, Lynnette Lynes

Mr. Smith called the meeting to order at 6:00 pm and reviewed the procedures with the public. He administered the oath to those speaking.

1. Approval of Minutes

The approval of the minutes was deferred.

2. Public Comment & General Correspondence

There being no comments, Mr. Smith continued with the agenda.

3. Business

A. V-15-17, 815 Lowcountry Blvd, 514-00-00-102, Request for relief from the strict standards of §156.201(I)(3)(b) to allow a 50 foot non-residential buffer on Mathis Ferry Road.

Mr. Robertson reviewed staff comments with the Board (see attachment 1).

Mr. JB Ryan, owner, reviewed the request with the Board.

Mr. Wolff asked if an "L" expansion would be added. Mr. Ryan answered in the affirmative.

Mr. Cowden asked if the addition would be located to the right of the building when looking at the front of the building. Mr. Ryan answered in the affirmative.

Mr. Duke asked if the property was purchased after the buffer requirements were established. Mr. Ryan answered in the affirmative. Mr. Duke asked if the buffer was noted on the plat. Mr. Ryan answered in the negative. Mr. Robertson noted that the buffers are not typically indicated on the plat.

There being no comments, Mr. Smith closed the public comments.

Mr. Wolff asked if the parking area would be expanded. Mr. Ryan answered that the parking would not be modified. He stated that there is a drainage ditch located to the rear of the property.

Mr. Belton asked if this property is consistent with other businesses. Mr. Smith answered in the affirmative.

Mr. Wolff moved for approval of the request with the findings included in the staff report. Mr. Cowden seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Cowden, Mr. Belton, Mr. Smith and Mr. Wood in favor; Mr. Duke opposed.

B. V-16-17, 116 Simmons Street, 517-16-00-093, Request for relief from the strict standards of §156.303 (C)(2) to allow an encroachment of approximately five feet into the required ten foot side yard setback and an approximately 24.9' encroachment into the required 30 foot front yard setback and request relief from the strict standards of §156.226 to allow encroachment of cantilevered portion of residence to encroach into a Tree Protection Zone.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Alex Bragg, owner, reviewed the request with the Board. She stated that the footprint of the home would be the same as what was previously approved by the Board, but a different house construction is desired.

Mr. Cowden asked when the property was purchased. Ms. Bragg answered that it was purchased in January 2017.

Mr. Wolff asked what the difference is with the previous request. Ms. Bragg answered that the footprint would not change; only the building elevations that were submitted with the variance request.

Mr. Duke asked if the footprint was identical. Ms. Bragg answered that her understanding is that the footprint would be the same. Mr. Robertson concurred that footprint would be the same and only the building elevations

would be changed. He stated that the law states that the previous variance is tied to the drawings submitted with that request and the reason for the variance.

Mr. Robertson reviewed the correspondence with the Board (attachment 2).

Mr. Belton stated that many of the surrounding residents were in favor of the previous request.

Mr. Smith suggested that as long as the footprint was not changing, he was not opposed to the request.

There being no further comments, Mr. Smith closed the public comments.

Mr. Belton moved for approval of the request based on the findings that is similar to the previous request with the same restrictions and findings. Mr. Wolff seconded the motion. All in favor.

C. V-16-17, 5th Avenue, 514-12-00-031, Request for relief from the strict standards of §156.201 (I)(3)(b) for a reduction of the Mathis Ferry Road Buffer from 75 feet non-residential buffer to 25' single-family buffer and the ability to provide limited pedestrian connections to the Mathis Ferry Road sidewalk.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Lee Gastley, Seamon, Whiteside, and Associates, reviewed the request with the Board.

Mr. Wolff asked if the park would be deeded to the Town. Mr. Gastley answered that the property was deeded from the Town to the East Cooper Land Trust.

Ms. Tyler, Lowndes, 554 Blackstrap, expressed concern with the request. She stated that the fire station was originally suggested to be built on this property, but because of the opposition from the surrounding neighborhood residents, the fire station was relocated. She stated that at that time, the Town indicated that this property would never be developed. She expressed concern that the passive park would be used for increased drug activity. She suggested that only

if a police officer would be located at the park on a full-time basis should the property be developed. She expressed concern for child safety and the potential for pedestrian/vehicle accidents.

Ms. Mary Lou Smith, 538 Blackstrap, stated that she was assured when she inquired about the property that it would not be developed. She suggested that it should not be developed. She suggested that it is a "bait and switch" to have the property sold and now being requested to be developed. She suggested that this property is close to a drug activity area and suggested that developing this as a park would only increase the drug activity.

Ms. Katherine Main, East Cooper Land Trust, expressed gratitude for the Town allowing the property to be utilized as a passive park. She stated that the residents would have input on the design of the park. She suggested that the park would be well-designed. She suggested that the park would be an asset to the area.

Mr. John Popelka, 532 Island Walk West, stated that he is the developer for Remley's Park and Remley's Lane developments. He stated that the majority of the residents are in favor of this project and that it would enhance the area. He suggested that additional parks and green space is needed in the area.

Mr. Elton Carrier, 313 King St, stated that the land swap was unanimously approved by Town Council. He stated that this would be an opportunity to have additional open space within the Town. He suggested that this would be a pedestrian destination. He suggested that Town Council is in favor of the project and asked that it be approved.

Mr. Milon Smith, 538 Blackstrap Street, stated that there was a recent drug-related shooting on 5th Avenue near the property. He stated that many of the residents are concerned with the drug activity in the area and that there would be an increase if the park is allowed.

Mr. Russ Seamon, 411 Ansley Court, stated that the request is to develop a passive park to honor a person of the community. He suggested that improving the park would decrease potential drug activity. He suggested that if the buffer reduction is allowed, it would mean that there would be less wooded area that

could be used for concealment. He suggested that this would be a meaningful development.

There being no further comments, Mr. Smith closed the public comments.

Mr. Wolff suggested that the addition of lighting and being more open would prevent criminal activity. He suggested that this could be a positive enhancement for the community.

Mr. Belton asked if the land has been conveyed. Mr. Smith answered in the affirmative. Mr. Belton suggested that the property can already be improved without a variance. He suggested that the issue is the size of the improvements would be dependent on the size of the buffer.

Mr. Duke asked if there would be any structures on the property. Mr. Robertson answered in the negative.

Mr. Smith suggested that the 75 foot buffer would be unreasonable if the premise is to improve the property as a park.

Mr. Cowden suggested that decreasing the buffer would allow the property to be more habitable. He suggested that the improvements would enhance the community. He suggested that the improvements would be an enhancement to the property.

Mr. Wolff moved for approval of the request based on the findings stated in the staff comments. Mr. Duke seconded the motion.

Mr. Belton suggested that the buffers for a park are excessive.

Mr. Wolff moved to amend the motion to include the condition that the property only be used as a park. Mr. Smith asked for a point of order and if the variance would continue if a different use was desired.

Mr. Robertson stated that the variance approval would be tied to the submitted site plan, so a different use would require an additional variance request be submitted.

Mr. Wolff withdrew his amendment.

Mr. Smith called for a vote on the motion. All in favor.

4. Approval of Final Orders

Mr. Robertson stated that there were corrections needed to last month's final orders and need to be re-signed.

There being further business, the meeting adjourned at 7:08 pm.

Submitted by,
L. Lynes
BOZA05222017